

24STCV06766 24STCV06766

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-07-28

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Case Number: 24STCV06766 Hearing Date: July 28, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: July

28, 2026 TRIAL DATE: Not set

CASE: Shalee Yolanda Ciccirelli v. Medical Legal Experts, LLC, et al.

CASE NO.: 24STCV06766

DEFENDANT

THE GUARDIAN GROUP'S DEMURRER TO PLAINTIFF'S COMPLAINT

MOVING

PARTY: Defendant The Guardian Group, LLC

RESPONDING

PARTY: Plaintiff Shalee Yolanda

Ciccirelli

I. BACKGROUND

Plaintiff

Shalee Yolanda Ciccirelli ("Plaintiff") brings this action against Defendants, Medical Legal Experts, LLC ("MLE"), Alvin Lee ("Alvin"), Jason Doe ("Jason"), Steven Stepanek ("Steven"), and The Guardian Group, LLC (as Doe 1) for various violations of the FEHA, Labor Code, unfair competition, and wrongful termination.

On June 25, 2026, defendant The Guardian Group, LLC ("Guardian") filed this demurrer to the Complaint.

On July 14, 2026, Plaintiff filed an opposition.

On July 22, 2026, Guardian filed a reply.

II. LEGAL STANDARD

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.) "Because a demurrer challenges defects on the face of the complaint, it can only refer to matters outside the pleading that are subject to judicial notice." (Arce ex rel. Arce v. Kaiser Found. Health Plan, Inc. (2010) 181 Cal.App.4th 471, 556.)

III. DISCUSSION

The demurrer presents a straightforward issue: does the Complaint fail as to Guardian because there are no allegations establishing that Guardian employed Plaintiff or otherwise engaged in any of the wrongful conduct described in the Complaint? The answer is yes.

Plaintiff named Guardian as Doe 1. (See Amendment to Complaint, 12/09/25.) Although each cause of action is asserted against all defendants, including Doe Defendants, there is not one allegation specifically identifying Doe Defendants (such as Guardian) as the wrongful actor. Rather, the Complaint specifically identifies MLE, Steven, Jason, and Alvin only. The Complaint is uncertain as to Guardian.

IV. CONCLUSION

Based on the foregoing, the demurrer to the Complaint is
SUSTAINED. Leave to amend is GRANTED.

Plaintiff

is ordered to serve and file her First Amended Complaint within 15 days of this
order.

Demurring

party to give notice, unless waived.

Dated: July 28, 2026

Brock T. Hammond

Judge of the Superior Court